

FOR NEW LICENSES AND TRANSFER
LICENSE AND/OR PERMIT APPLICATION
 FOR LIQUOR, COUNTY MALT BEVERAGE, LIMITED, WINERY OR MICROBREWERY

To be completed by the City, Town or County Clerk:			
Date Filed: <u>01 / 16 / 2020</u> <u>2300431</u>		Formerly Held by: <u>N/A</u>	
Applicant: <u>Black Tooth Brewing Company, LLC.</u>		Trade Name (dba): <u>Black Tooth Brewing Co.</u>	
Premise Address: <u>520 W. 19th Street</u>		Number & Street	
Cheyenne Wyoming 82001 Laramie		City State Zip County	
Mailing Address: <u>520 W. 19th Street</u>		Number & Street or P.O. Box	
Cheyenne Wyoming 82001		City State Zip	
Business Telephone Number: <u>(307) 675-2337</u>		Fax Number: <u>()</u>	
E-Mail Address: <u>tim@btbrew.com</u>			
LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.			

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FILING FOR	TYPE OF LICENSE OR PERMIT	To Assist the Liquor Division with scheduling inspections:
☒ NEW ☐ TRANSFER LOCATION ☐ TRANSFER OWNERSHIP FILING IN (CHOOSE ONLY ONE) ☒ CITY OF <u>Cheyenne</u> ☐ COUNTY OF _____ FILING AS (CHOOSE ONLY ONE) ☐ INDIVIDUAL ☒ LLC ☐ PARTNERSHIP ☐ LLP ☐ CORPORATION ☐ LTD PARTNERSHIP ☐ ASSOCIATION ☐ ORGANIZATION	(CHOOSE ONLY ONE) ☐ RETAIL LIQUOR LICENSE ☐ on-premise only (Bar) ☐ off-premise only (Package Store) ☐ combination on/off premise (Both) ☐ RESTAURANT LIQUOR LICENSE ☐ RESORT LIQUOR LICENSE ☐ COUNTY RETAIL or SPECIAL MALT BEVERAGE PERMIT ☐ VETERANS CLUB ☐ FRATERNAL CLUB ☐ GOLF CLUB ☐ SOCIAL CLUB ☒ MICROBREWERY ☐ WINERY ☐ BAR AND GRILL ☐ LOCATED WITHIN 5 MILES OF CITY (County License only)	DO YOU OPERATE? ☒ FULL TIME (e.g. Jan through Dec) ☐ SEASONAL/PART-TIME (specify months of operation) from <u>January 1st</u> to <u>December 31st</u> DAYS OF WEEK (e.g. Mon through Sat) <u>Sunday Through Saturday</u> HOURS OF OPERATION (e.g. 10a - 2a) <u>12:00pm - 2:00am</u>

1. Location of License:

(a) Give a description of the dispensing room and state where it is located in the building (e.g. 10 x 12 room in SE corner of 1st floor of building). If the building is not in existence, provide the location and an architect's drawing or suitable plans of the room and premises to be licensed: W.S. 12-4-102(a)(i): **(Please submit a drawing of the establishment that includes the dispensing room)**

See Attached Site and Floor Plans: Southern Facing Half of Building Approximately 65x60 (3900sq. ft.)

(b) If **Winery or Microbrewery**, also list manufacturing facility. (e.g. MFG: 10' X 12' room in SW portion of bldg.)

See Attached Site and Floor Plans: Northern Facing Half of Building Approximately (4500 sq. ft)

(c) Do you have an additional dispensing room? ☐ YES ☒ NO If yes, provide description and location:

(d) Provide the legal description and the zoning of the site where the applicant will conduct business:

See Attached Site and Floor Plans: Unit A, Bldg 290 Condominiums NWB

2. Do you W.S. 12-4-103 (a) (iii):

(1) **OWN** the building in which sales room is located?

☐ YES (own)

(2) **LEASE** the building in which sales room is located?

☒ YES (lease)

(A) **DATE** lease expires December 31st, 2033 located on page 1 paragraph 1 of lease document

(B) Provision for **SALE** of alcoholic or malt beverages located on page 2 paragraph 2(h) of lease

NOTE: Attach a true copy of the lease to application. Lease MUST contain provision for SALE OF ALCOHOLIC OR MALT BEVERAGES and be valid THROUGH the TERM OF THE LICENSE W.S. 12-4-103(a)(iii).

3. Have you already assigned, leased, transferred or do you intend to assign, lease, transfer, contract or in any other manner agree with any person or firm other than yourself as licensee to operate and assert control or partial control of the license and the licensed room to carry on the licensed liquor business? ☐ YES ☒ NO
4. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403
- (a) Hold any interest in the license applied for? ☐ YES ☒ NO
 - (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business? ☐ YES ☒ NO
 - (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
 - (d) If you answered YES to any of the above, explain fully and submit any documents in connection therewith: _____
5. Does applicant have any interest or intent to acquire an interest in any other retail liquor license to be issued by this licensing authority? W.S. 12-4-103(b) ☐ YES ☒ NO
If "YES", explain: _____
6. Is applicant a mayor, member of a city or town council, or member of the board of county commissioners within the jurisdiction of this licensing authority? W.S. 12-4-103(a)(i) ☐ YES ☒ NO
7. Is applicant employed by the State, City or Town, or County as a law enforcement officer, or hold office as a law enforcement officer through election? W.S. 12-4-103(a)(ii) ☐ YES ☒ NO

RESTAURANT OR BAR AND GRILL LICENSE: Complete questions 8(a) and 8(b):

8. (a) Have you submitted a valid food service permit upon application? ☐ YES ☐ NO
W.S. 12-4-407(a) W.S. 12-4-413(a)
- (b) Was your dispensing room for alcoholic and/or malt beverages in existence and open for consumption purposes prior to February 1, 1979? W.S. 12-4-410(b) ☐ YES ☐ NO ☐ N/A

RESORT LICENSE: Complete questions 9(a) through 9(c):

9. (a) Is the actual valuation of the resort complex at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO
- (b) Does the resort complex include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
- (c) Does the resort complex include motel or hotel accommodations with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO

MICROBREWERY AND/OR WINERY LICENSE: Complete questions 10 through 11:

10. Is premise to be co-existent with a retail, restaurant, resort or bar and grill liquor license? W.S. 12-4-412(b)(iii) ☐ YES ☒ NO
- If "YES", please specify type: ☐ Microbrewery ☐ Winery ☐ Retail
☐ Restaurant ☐ Resort ☐ Bar & Grill:

11. (a) Do you self distribute your products? ☐ YES ☒ NO
- (b) Do you distribute your products through an existing malt beverage wholesaler? ☒ YES ☐ NO

ORGANIZATION AND/OR CLUB LICENSE: Complete questions 12 through 15 as applicable:

12. **FRATERNAL CLUBS** W.S. 12-1-101(a)(iii)(B)
- (a) The name and address of the grand lodge or national organization is: _____
 - (b) Does lodge or fraternal organization hold a charter from a national organization or national grand lodge? ☐ YES ☐ NO
 - (c) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
 - (d) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

13. VETERANS CLUBS W.S. 12-1-101(a)(iii)(A):

- (a) The name and address of the National Veterans organization is: _____
- (b) Has the Veteran's organization been chartered by the Congress of the United States for patriotic, fraternal or benevolent purposes? ☐ YES ☐ NO
- (c) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

 Tim Barnes
Co-Founder 11/21/2020

14. SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E):

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with the local licensing authority and the Wyoming Liquor Division? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License?
(THE PETITION MUST BE ATTACHED TO APPLICATION) ☐ YES ☐ NO
- (i) Have you filed with the licensing authority and the Wyoming Liquor Division a detailed statement of your activities during the preceding year which were undertaken or furthered in pursuit of the objectives of the club, along with an itemized statement expended for such activities? ☐ YES ☐ NO

15. GOLF CLUBS W.S. 12-1-101(a)(iii)(D):

- (a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO

- 16. (a) If applicant is an Individual or Partnership:** State the name, date of birth and residence of each applicant or partner, if the application is made by more than one individual or by a partnership.

If the application is for a Club: State the name, date of birth and residence of each officer.

True and Correct Name	Date of Birth	DONOT LIST PO BOXES Residence Address No. & Street City, State & Zip	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐	YES ☐	YES ☐
				NO ☐	NO ☐	NO ☐
				YES ☐	YES ☐	YES ☐
				NO ☐	NO ☐	NO ☐
				YES ☐	YES ☐	YES ☐
				NO ☐	NO ☐	NO ☐
				YES ☐	YES ☐	YES ☐
				NO ☐	NO ☐	NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

- (b) If the applicant is a Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership:** State the name, date of birth and residence of each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, and every officer, and every director.

True and Correct Name	Date of Birth	DONOT LIST PO BOXES Residence Address No. & Street City, State & Zip	Residence Phone Number	No. of Years in Corp or LLC	% of Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
		See Attached Sheet				YES ☐	YES ☐
						NO ☐	NO ☐
						YES ☐	YES ☐
						NO ☐	NO ☐
						YES ☐	YES ☐
						NO ☐	NO ☐
						YES ☐	YES ☐
						NO ☐	NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

OATH OR VERIFICATION

(Requires signatures by **ALL** Individuals, **ALL** Partners, **ONE (1)** LLC Member, or **TWO (2)** Corporate Officers or Directors except that if all the stock of the corporation is owned by **ONE (1)** individual then that individual may sign and verify the application upon his oath, or **TWO (2)** Club Officers.) W.S. 12-4-102(b)

Under penalty of perjury, and the possible revocation or cancellation of the license, I swear the above stated facts, are true and accurate.

STATE OF WYOMING)

COUNTY OF Laramie SS.

Before Me, Timothy Baerens Wendy Kinkade, (specify)
(Printed name of Notary or other officer authorized to administer oaths)

Laramie a Notary Public, Officer authorized to administer oaths in and for
County, State of Wyoming, personally appeared

Timothy Baerens name he/she being first duly sworn
(Insert Names)

by me upon his oath, says that the facts alleged in the foregoing instrument are true.



1. [Signature]
2. _____
3. _____
4. _____

My Commission expires: 3 27 2022

Witness my hand and official seal:

Wendy Kinkade
(Notary Public or other officer authorized to administer oaths)

Title NotaryDated: 1 16 20**REQUIRED ATTACHMENTS:**

- (a) Attach any lease agreements W.S. 12-4-103 (a) (iii).
- (b) If the building is not in existence, an architect's drawing or suitable plans of the room and the premises to be licensed must be attached W.S. 12-4-102 (a) (i).
- (c) A statement indicating the financial condition and financial stability of the applicant W.S. 12-4-102 (a) (vi).
- (d) Restaurant or Bar & Grill Liquor License applicants must include a copy of the CURRENT food service permit W.S. 12-4-407 (a) or 12-4-413 (a).
- (e) Include a drawing of the dispensing room W.S. 12-5-201 (a).
- (f) Check or bank draft as payment for the application and publishing the notice of application (Direct billing is permissible for publication fees) W.S. 12-4-101-4 (a).
- (g) If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer W.S. 12-4-601 (b).

ADVERTISING REQUIREMENTS W.S. 12-4-104(a):

When an application for a license, permit, renewal or any transfer of location or ownership thereof has been filed with a licensing authority, the clerk shall promptly prepare a notice of application, place the notice conspicuously upon the premises shown by the application as the proposed place of sale and public the notice in a newspaper of local circulation once a week for two (2) consecutive weeks. The notice shall state that a named applicant has applied for a license, permit, renewal or transfer thereof, and that protests against the issuance, renewal, or transfer of the license or permit will be heard at a designated meeting of the licensing authority.

FOR LIQUOR DIVISION USE ONLY		
Reviewer	Initials	Date
Agent:		
Chief:		
Acct.:		

Owner	Address	Title	Social Security #	Date of Birth	Phone	Yrs In Corp.	% of Stock Held	Felony Conviction	Alcohol Conviction
Timothy P. Barnes	1661 Hillcrest Dr. Sheridan, WY 82801	Owner	[REDACTED]	8/31/1974	307-673-5964	9	17.10%	no	no
Michael J. Strahan	65 River Rock Road Sheridan, WY 82801	Owner	[REDACTED]	11/25/1952	607-672-8921	9	24.74%	no	no
Dory M. Doud	25528 Genesee Trail Road Golden, CO 80104	Owner	[REDACTED]	1/10/1977	303-881-2665	6	18.83%	no	no
Timothy R. Barnes	165 Scott Drive Sheridan, WY 82801	Owner	[REDACTED]	2/24/1949	307-672-5639	6	24.11%	no	no
Daniel L. Black	52 Hwy 335 Sheridan, WY 82801	Owner	[REDACTED]	12/8/1965	307-751-7684	6	15.22%	no	no

LEASE AGREEMENT

This Lease Agreement (this "Lease") is entered into Effective January 1, 2020, between **NINETEENTH and O'NEIL, LLC**, a Wyoming limited liability company ("**Landlord**") and **Black Tooth Brewing Company, LLC**, a Wyoming limited liability company ("**Tenant**").

1. **Defined Terms.** The following terms shall have the meaning ascribed to them below; any other capitalized terms are as defined in this Lease Agreement ("Lease").

- (a) **Landlord and Landlord's Address (subparagraph 17(h)):** NINETEENTH and O'NEIL, LLC
Attn: Kent A. Sherwood, Manager
312 Broadway
Sheridan, WY 82801
- (b) **Tenant and Tenant's Address for Notices (subparagraph 17(h)):** Black Tooth Brewing Company, LLC
Attn: Tim Barnes, Manager
312 Broadway
Sheridan, WY 82801
- (c) **Street Address of Premises:** 520 W. 19th St.
Cheyenne, Wyoming 82001
And as more specifically described in the attached Exhibit "A" incorporated in this Agreement by this reference.
- (d) **Initial Term Expiration Date:** December 31, 2033
- (e) **Commencement Date:** January 1, 2020
- (f) **Base Monthly Rent:** *To be determined upon completion*
\$____ each month from January 30, 2019 through December 31, 2022 ; then \$____ each month from January 1, 2023 through December 31, 2024; then \$____ each month from January 1, 2025 through December 31, 2027; then \$____ each month from January 1, 2028 through December 31, 2030; then \$____ each month from January 1, 2031 through December 31, 2033
- (g) **Security Deposit (subparagraph 5(a)):** \$ N/A

(h) **Permitted Uses
(Paragraph 6):**

Licensed production and sale of
malt beverages, alcohol and related businesses.

2. **Leased Premises.**

(a) **Property to be Leased.** As of the Commencement Date, Landlord leases to Tenant, and Tenant leases from Landlord, subject to the terms and conditions contained herein, (i) real property located at the addresses set forth in Paragraph 1 and legally described in attached **Exhibit A** (the “**Property**”) and (ii) those improvements existing on the Property as of the date of this Lease (the “**Improvements**”). The Property and the Improvements are collectively referred to as the “**Premises.**”

3. **Term.** The Term of this Lease shall be from the Commencement Date through the Initial Term Expiration Date (the “**Term**”).

4. **Rent.**

(a) **Base Monthly Rent.** Tenant shall pay Landlord as Base Monthly Rent for the Premises a sum equal to the Base Monthly Rent set forth in Paragraph 1 on or before the first day of each and every calendar month during the Term of this Lease. The Base Monthly Rent and any other amounts required to be paid by Tenant pursuant to this Lease are collectively referred to as the “**Rent.**” Rent shall be payable, without deduction or offset, in lawful money of the United States to the Landlord at the address stated in this Lease for notice to the Landlord or to such other persons or at such other places as Landlord may designate and provide proper notice of to the Tenant in writing.

(b) **Pro Rata Rent.** Base Monthly Rent for any period during the Term which is for less than one (1) calendar month shall be only a *pro rata* portion of the Base Monthly Rent installment due for that specific month.

(c) **Net Lease.** This Lease is what is commonly called a “net lease,” it being understood that Landlord shall receive the Rent set forth in this paragraph free and clear of any and all actual incurred or incurring or accruing: taxes, liens, charges or expenses of any nature whatsoever in connection with its ownership and leasing of the Premises except those expenses specifically designated in this Lease to be borne by Landlord. In addition to the payment of Rent, Tenant shall also be responsible to pay for all actual incurred, accruing or payable: taxes, insurance premiums, operating charges, management fees, costs and other expenses which arise pursuant to any term of this Lease while it is in effect. All of such charges, costs and expenses shall constitute additional Rent and, upon the failure of Tenant to timely pay any of such costs, charges or expenses, Landlord shall have the same rights and remedies as otherwise provided in this Lease for the failure of Tenant to timely pay Rent. It is the intention of the parties hereto that Tenant shall in no event be entitled to any abatement of or reduction in Rent or additional Rent payable hereunder, except as expressly provided in this Lease.

(d) **Reimbursable Expenses.** Any sum which is designated specifically in this Lease as a “**Reimbursable Expense**” for which the Landlord is to be paid by Tenant shall, if owed, be paid by Tenant to Landlord each year on or before December 31.

5. **Security.**

(a) **Security Deposit.** Intentionally omitted.

(b) **Lien and Security Interest.** Intentionally omitted.

6. **Use.**

(a) **General.** The Premises shall be used and occupied only for the Permitted Uses set forth in Paragraph 1 above and for no other purpose, except as expressly consented to by the Landlord in writing, which consent shall not be unreasonably withheld.

(b) **Compliance with Law.** Effective as of the Commencement Date and thereafter throughout the Term of this Lease, Tenant shall, at Tenant’s sole cost and expense, comply with all relevant and applicable present and future laws, ordinances, orders, declarations of covenants and restrictions, rules, regulations and requirements of all federal, state, county and municipal governments, courts, departments, commissions, boards and officers, which may be applicable to the Tenant’s business uses and activities on the Premises, and the sidewalk and curbs adjoining the Premises or to the use or manner of use of the Premises (“**Applicable Laws**”). Tenant shall not use or permit the use of the Premises in any manner that will tend to create waste or a nuisance. Tenant agrees to obtain any and all necessary permits and licenses for Tenant’s business and activities on the Premises prior to execution of this Lease or within a reasonable time thereafter.

(c) **Existing Title and Condition of Premises.** Tenant hereby accepts the Premises “AS IS” and “WHERE IS” physical condition, with the rights to make changes to the Premises set out in this Lease and subject to all Applicable Laws. Tenant represents that Tenant has, prior to execution of this Lease, inspected the Premises and found it suitable for Tenant’s purposes. Tenant agrees that neither Landlord nor Landlord’s agents have made any representations or warranties as to the Premises, including without limitation, any representation or warranty as to the condition or fitness of the Improvements or the suitability of the Improvements for the conduct of Tenant’s business.

(d) **Signs.** Tenant may erect or install on any exterior or interior window, any door, or any exterior wall any signs, advertising media, placards, trademarks, drapes, screens, tinting materials, shades, blinds or similar items, without first securing the Landlord’s prior permission. All signs shall comply with all Applicable Laws. Tenant shall properly maintain all signs. Upon expiration of the Lease, Tenant shall remove all signs placed in and around the Premises by Tenant and shall repair any damage to the Premises caused by the removal of such signs within a reasonable time.

7. **Maintenance and Repairs.**

(a) **Tenant's Maintenance.** Tenant shall not be responsible to maintain or pay for maintenance allocated in subparagraph 7(b) below to the Landlord. Tenant shall at Tenant's sole cost and expense, keep and maintain the Premises in good order and repair and in a safe and clean condition, including, without limitation: the exterior and interior portions of all doors, windows, plate glass, store frontage, plumbing and sewage facilities (including drains) within the Premises, fixtures, electrical systems, sprinkler system, walls paint or wall coverings, floor coverings, ceiling paint or coverings, meters applicable to and located on the Premises, electrical, plumbing and HVAC and/or boiler systems, any and all alterations and additions made to the Premises by the Tenant pursuant to this Lease, all walks, driveways, parking and loading areas, lawns and landscaping (if any), fences and signs located on or included with the Premises. While this Lease is in effect, the Tenant shall further maintain and bear the expense of the light fixtures and bulbs, janitorial services, interior pest control, and the like. Tenant shall not cause or permit accumulation of any debris or extraneous matter on the roof of the Premises. In accordance with any applicable municipal regulations, and its own expense, Tenant shall place any rubbish or other matter outside the building on the Premises only in such containers as are authorized from time to time by Landlord; see that there are no undue accumulations of garbage and refuse; and keep the Premises (including, all exterior surfaces and both sides of all glass) clean, orderly, sanitary, and free from objectionable odors, insects, vermin and other pests. Tenant shall, at Tenant's own expense, immediately replace all interior, exterior or other glass in or about the Premises that may be broken during the Term with glass at least equal to the specification and quality of the glass so replaced. If Tenant fails to perform Tenant's obligations under this subparagraph, Landlord may at its option enter upon the Premises after ten (10) days prior written notice to Tenant and put the same in good order, condition and repair, and the cost thereof together with interest thereon at the rate of twelve percent (12%) per annum shall become due and payable as additional rental to Landlord together with Tenant's next monthly Rent payment. Nothing herein shall imply any duty upon the part of Landlord to do any such work and the performance thereof by Landlord shall not constitute a waiver of Tenant's default in failing to perform the same. Landlord may, during the progress of any such work in or on the Premises, keep and store therein all necessary materials, tools, supplies and equipment. Landlord shall not be liable for the inconvenience, annoyance, disturbance, loss of business or other damage of Tenant by reason of making such repairs or the performance of any such work, or on account of bringing materials, tools, supplies or equipment into or through the Premises during the course thereof, and the obligations of Tenant under this Lease shall not be affected thereby.

(b) **Landlord's Maintenance.** Landlord shall, at Landlord's sole cost and expenses, keep and maintain in good order and repair and in a safe, clean and useable condition the building foundation and all: exterior walls, bearing walls, subfloors, the roof and roof covering(s), gutters and gutter heat tapes or similar devices, outside wall surfaces and the water and sewer utility connections that are owned by the Landlord.

(c) **Service Contracts.** Tenant shall, at Tenant's sole expense and in Tenant's sole and reasonable discretion, procure and maintain contracts, with copies to Landlord, in customary form and substance for, and with contractors specializing and experienced in, the maintenance of the following equipment and Improvements, if any, located on or if and when installed on the Premises: (i) HVAC equipment, (ii) boiler and pressure vessels, (iii) fire

extinguishing systems (including any fire alarm and/or smoke detection), (iv) landscaping and irrigation systems, (v) drains within the Premises; and, (vi) driveways and parking lots.

(d) **Surrender.** On the last day of the Term, or on any earlier termination of this Lease according to the terms of this Lease, Tenant, shall within a reasonable time remove all of its personal property and fixtures, including but not limited to all of the brewing equipment and related connections for it that are more particularly described in the attached Exhibit "B" list whether or not any one or more of such items are attached, plumbed or wired into the Premises by the Tenant during while this Lease is in effect. Tenant shall surrender the Premises to Landlord in the same condition as when received, subject to the remodeling or Improvements made by Tenant during the Term of this Lease according to this Lease and ordinary wear and tear excepted. All Improvements and alterations to the Premises pursuant to this Lease, whether temporary or permanent in character, shall be the Landlord's property on termination of this Lease and shall be surrendered to Landlord in good condition and repair upon expiration of the Term or other termination of this Lease, all without compensation to Tenant.

8. **Utilities.** During the Term of this Lease, the Tenant shall pay directly for all water, gas, heat, light, power, telephone and other utilities and similar services supplied to the Tenant for the Premises, together with any incurred or accrued taxes thereon and all connection or installation fees or costs actually incurred and associated therewith. Landlord reserves the right to grant easements on the Premises, and to dedicate for public use portions thereof, without Tenant's consent provided that no such grant or dedication shall in any manner materially interfere with or hinder Tenant's use of the Premises or otherwise cause Tenant to incur cost or expense. From time to time upon Landlord's reasonable and timely demand, Tenant shall execute, acknowledge and deliver to Landlord, in accordance with Landlord's instructions, any and all documents or instruments actually necessary to effect Tenant's covenants herein.

9. **Alterations and Additions.**

(a) **Remodel.** The Premises have been remodeled by Tenant. Tenant may make further remodels at Tenants expense for its business. All alterations, Improvements, additions and utility installations made by the Tenant shall be in full compliance with all Applicable Laws.

(b) **Liens.** Tenant shall pay, when due, all claims for labor or materials furnished or alleged to have been furnished to or for Tenant at or for use on or in connection with the Premises, which claims are or may be secured by any mechanics' or materialmens' lien against the Premises or any interest therein. Tenant shall give Landlord not less than ten (10) calendar days' notice prior to the commencement of any work on the Premises, and Landlord shall have the right to post notices of non-responsibility in or on the Premises as provided by any Applicable Laws.

(c) **Removal.** Unless Landlord requires their removal as set forth in subparagraph (a) above or otherwise consents to such removal, and expressly excluding the personal property, fixtures and equipment described in the attached Exhibit "B" to this Lease, all alterations, Improvements, additions and utility installations which may be made on or to the

Premises shall become the Property of Landlord and remain upon and be surrendered with the Premises at the expiration of the Term.

10. **Insurance.**

(a) **Liability.** Tenant at its sole cost and expense shall obtain and keep in full force a policy of commercial general liability and property damage insurance (including but not limited to personal injury, broad form contractual liability, owner's (i.e., Tenant's) contractors protective and broad form property damage) on an "occurrence basis" under which Tenant is named as the insured and Landlord, Landlord's agents and managers and any lessors and mortgagees (whose names shall have been furnished to Tenant) are named as additional insureds or are equivalently endorsed as additional insured on the policy. The minimum limits of liability shall be a combined single limit with respect to each occurrence of not less than \$2,000,000. The limits of the insurance shall not, however, in any way limit the liability of Tenant under this Lease. The policy shall contain a cross liability endorsement and shall be primary coverage for Tenant and Landlord for any liability arising out of Tenant's and Tenant's employees', agents' and contractors' use, occupancy or maintenance of the Premises and all areas appurtenant thereto and any bodily injury, death or property damage occurring upon, in or about the Premises, the adjoining sidewalks, streets and passage ways and all other areas appurtenant thereto. Such insurance policies shall provide that they are primary insurance and not "excess over" or contributory. Landlord may, at its option, maintain commercial general liability insurance and umbrella liability insurance which provides additional coverage with respect to the Premises.

(b) **Property.** Tenant at its sole cost and expense, shall keep the Improvements insured during the Term for the mutual benefit of Landlord and Tenant as named insureds, against loss or damage by fire and lightning and against loss or damage by other risks embraced by coverage of the type now known as Causes of Loss - Special Form coverage, including but not limited to fire, riot and civil commotion, vandalism and malicious mischief, special extended perils (all risk) and sprinkler leakage, and earthquake coverage in amounts sufficient to prevent Landlord or Tenant from becoming a co-insurer under the terms of the applicable policies, but in any event in an amount not less than the full replacement cost of the Improvements, without deduction for physical depreciation, and with not more than \$5,000.00 deductible from the loss payable for any casualty. The policies of insurance carried in accordance with this paragraph shall contain a "Replacement Cost Endorsement." Such full replacement cost shall be determined from time to time by good faith agreement of the parties not more frequently than once in any twelve (12) calendar months (except in the event of substantial changes or alterations to the Improvements undertaken by Tenant as permitted in this Lease. hereunder). The insurance shall provide for payment for loss thereunder to Landlord or, at Landlord's request, to the holder of any mortgage or deed of trust on the Premises.

(c) **Policies.** Insurance required hereunder shall be by companies having a minimum "Best's Financial Strength Rating" of B+ and otherwise licensed to do business in the State of Wyoming. Tenant shall deliver to Landlord copies of policies of such insurance or certificates evidencing the existence and amounts of such insurance with loss payable clauses satisfactory to Landlord. No such policy shall be cancelable or subject to reduction of coverage or other modification except after thirty (30) calendar days written notice to Landlord. Tenant shall, within ten (10) calendar days of the expiration of such policies, furnish Landlord with

renewals or "binders" thereof, or Landlord may order such insurance and charge the cost thereof to Tenant, which amount shall be payable directly by the Tenant upon demand. Each such policy or certificate therefor issued by the insurer shall to the extent obtainable contain: (i) a provision that no act or omission of Tenant which would otherwise result in forfeiture or reduction of the insurance therein provided shall affect or limit the obligation of the insurance company to pay the amount of any loss sustained and (ii) an agreement by the insurer that such policy shall not be canceled without at least thirty (30) calendar days prior written notice by certified mail return receipt requested to the Landlord. Tenant shall not do or permit to be done anything which shall invalidate the insurance policies referred to herein. If Tenant shall fail to procure and maintain any insurance required to be maintained by it by virtue of any provision of this paragraph, Landlord may, but shall not be required to, procure and maintain the same, but at the expense of Tenant.

(d) Waiver of Subrogation. Landlord and Tenant each hereby mutually waive any and all rights of recovery against the other, or against the partners, officers, employees, agents and representatives of the other, for loss of or damage to such waiving party or its property or the Property of the other under its control to the extent that such loss or damage is insured against under any insurance policy in force at the time of such loss or damage, but only to the extent of such insurance coverage afforded. Both parties shall, upon obtaining the policies of insurance required hereunder, give notice to the insurance carrier or carriers that the foregoing mutual waiver of right to recovery by way of subrogation is contained in this Lease.

(e) Tenant's Contents. Tenant shall assume the risk of damage to any fixtures, goods, inventory, merchandise, equipment, furniture and leasehold Improvements which remain the Property of Tenant or as to which Tenant retains the right of removal from the Premises, and Landlord shall not be liable for injury to Tenant's business or any loss of income therefrom relative to such damage. Tenant shall maintain the following insurance coverage with respect to such items during the Term:

(i) Against fire, extended coverage, and vandalism and malicious mischief perils in an amount not less than ninety percent (90%) of the full replacement cost thereof;

(ii) Broad form boiler and machinery insurance on a blanket repair and replacement basis with limits per accident not less than the replacement cost of all leasehold Improvements and of all boilers, pressure vessels, air conditioning equipment, miscellaneous electrical apparatus and all other insurable objects owned or operated by the Tenant or by others (other than Landlord) on behalf of Tenant in the Premises, or relating to or serving the Premises; and;

(iii) Business interruption insurance in such an amount as will reimburse Tenant for direct or indirect loss of earnings attributable to all such perils insured against in subparagraphs 10(e)(i) and (ii) hereinabove.

(f) Workmen's Compensation. Tenant shall, at its own cost and expense, keep and maintain in full force and effect during the Term, a policy or policies of workmen's compensation insurance according to the requirements of applicable Wyoming law.

11. **Indemnity; Exemption of Landlord from Liability.**

(a) **General.** In addition to any other obligations of Tenant hereunder, including the obligations of Tenant to provide insurance, Tenant shall indemnify and hold Landlord harmless for, from and against any and all claims arising from Tenant's use of the Premises, or from the conduct of Tenant's business or from any activity, work or things done, permitted or suffered by Tenant in or about the Premises or elsewhere and shall further indemnify and hold Landlord harmless for, from and against any and all claims arising from any breach or default in the performance of any obligation on Tenant's part to be performed under the terms of this Lease, or arising from any negligence of Tenant, or any of Tenant's agents, contractors, or employees, and for, from and against all costs, attorneys' fees, expenses and liabilities incurred in the defense of any such claim or any action or proceeding brought thereon; and in case any action or proceeding be brought against Landlord by reason of any such claim, Tenant upon notice from Landlord shall defend the same at Tenant's expense by counsel satisfactory to Landlord; provided, however, the foregoing indemnity shall not apply to claims made as a result of the sole negligence or intentional misconduct of Landlord.

(b) **Tenant's Business.** In addition to any other obligation of Tenant hereunder, including any obligation of Tenant to provide insurance, Tenant hereby agrees that Landlord shall not be liable for injury to Tenant's business or any loss of income therefrom or for damage to the goods, wares, merchandise or other property of Tenant, Tenant's employees, invitees, customers, or any other person in or about the Premises, nor shall Landlord be liable for injury to the person of Tenant or Tenant's employees, agents or contractors, whether such damage or injury is caused by or results from a condition on or arising out of the Premises for which the Tenant is responsible pursuant to this Lease.

12. **Damage or Destruction; Obligation to Rebuild.**

(a) **Landlord's Obligation to Rebuild.** If the Premises are damaged or destroyed during the Term, Landlord shall, except as hereinafter provided, diligently repair or rebuild them to substantially the condition in which they existed immediately prior to such damage or destruction; provided that any damage which is estimated in good faith by Landlord to be under Two Thousand Five Hundred Dollars (\$2,500 US) shall be repaired by Tenant, and Landlord shall reimburse Tenant upon demand for expenses incurred in such repair work to the extent of any proceeds received by Landlord from extended coverage insurance maintained pursuant to Paragraph 12 above.

(b) **Abatement of Rent.** Rent due and payable hereunder shall be abated, but only to the extent of any proceeds received by Landlord from rental income insurance maintained pursuant to Paragraph 12 above, during the period commencing with such damage or destruction and ending with a substantial completion by Landlord of the work of repair or reconstruction which Landlord is obligated or undertakes to do.

(c) **Option to Terminate.** If the Improvements are damaged or destroyed to the extent that Landlord determines that the same cannot, with reasonable diligence, be fully repaired or restored by Landlord within nine (9) months after the date of the damage or destruction, the sole right of both Landlord and Tenant shall be the option to terminate this Lease as hereinafter

provided; provided, however, Tenant shall not have the right to terminate this Lease unless Landlord determines that the Premises cannot be so repaired or restored within such nine (9) month period of time. Landlord shall determine whether the Improvements can be fully repaired or restored within the nine (9) month period, and Landlord's determination shall be conclusive on Tenant. Landlord shall notify Tenant of its determination, in writing, within thirty (30) days after the date of the damage or destruction. If Landlord determines that the Improvements, including the Premises, can be fully repaired or restored within the nine (9) month period, or if it is determined that such repair or restoration cannot be made within the period but no party having the right to do so elects to terminate within thirty (30) days from the date of the determination, this Lease shall remain in full force and effect and Landlord shall diligently repair and restore the damage as soon as reasonably possible.

(d) **Uninsured Casualties.** Notwithstanding anything contained herein to the contrary, in the event of damage to or destruction of all or any portion of the Improvements which is not fully covered (except for deductible amounts) by the insurance proceeds received by Landlord under the insurance policies required to be maintained pursuant to Paragraph 12 above, or in the event that any portion of such insurance proceeds must be paid over to or are retained by the holder of any mortgage or deed of trust on the Property or Premises, Landlord may terminate this Lease by written notice to Tenant, given within thirty (30) calendar days after the date of notice to Landlord that the damage or destruction is not so covered or that the proceeds are not available for repair of the damage or destruction. If Landlord does not elect to terminate this Lease, the Lease shall remain in full force and effect and the Improvements shall be repaired and rebuilt in accordance with the provisions for repair set forth in subparagraph 12(a) above.

(e) **Damage Near End of Term.** If the Improvements are partially destroyed or damaged during the last twenty-four (24) months of the Term, Landlord may, at Landlord's option, cancel and terminate this Lease as of the date of occurrence of such damage by giving written notice to Tenant of Landlord's election to do so within thirty (30) calendar days after the date of occurrence of such damage.

(f) **Tenant's Waiver.** With respect to any destruction which Landlord is obligated to repair or may elect to repair under the terms of this paragraph, Tenant hereby waives all right to terminate this Lease pursuant to rights otherwise presently or hereafter accorded by any Applicable Laws.

13. **Taxes and Assessments.**

(a) **Payment.** Tenant is responsible to pay for the cost of all Property Taxes (as defined below) applicable to the Premises during the Term. If the Landlord shall pay any of the items designated as Property Taxes, and the items shall become Reimbursable Expenses which shall be payable by Tenant to Landlord. If any Property Taxes due with respect to the Premises shall cover any period of time prior to or after the expiration of the Term, Tenant's share of such Property Taxes shall be equitably prorated to cover only the period of time within the year during which this Lease shall be in effect.

(b) **Definition.** As used herein, the Term “**Property Taxes**” shall include any form of general or special assessment, license fee, levy penalty, or tax (excluding any inheritance or estate taxes) imposed by any authority having the direct or indirect power to tax, including any city, county, state or federal government, or any school, agricultural, lighting, drainage or other improvement district, or any part or parts thereof, or against any legal or equitable interest of Landlord in the Premises.

(c) **Separate Assessment.** If the Premises are not separately assessed, Tenant’s liability shall be an equitable pro rata portion of the Property Taxes for all of the land and Improvements included within the tax parcel assessed, such portion to be agreed upon by the parties in good faith based upon the respective record valuations assigned in the assessor’s work sheet or such other information as may be reasonably available.

(d) **Personal Property.** Tenant shall timely pay all taxes assessed against and levied upon Tenant’s trade fixtures, furnishings, equipment and all other personal property contained on the Premises or elsewhere and upon any alterations or additions made pursuant to this Lease Tenant shall cause such trade fixtures, furnishings, equipment, alterations, additions and all other personal property to be assessed and billed separately from the Premises; provided, however, that in the event they are not so separately assessed and billed to Tenant, but rather are billed to Landlord, Tenant shall reimburse Landlord the amount so billed on account thereof within fifteen (15) calendar days after Landlord invoices Tenant therefor.

(e) **Declaration.** The parties shall communicate and cooperate in good faith to attend, make or file any declaration, statement or report which may be provided or required by law as the basis of or in connection with the determination, equalization, reduction or payment of any Property Taxes which are to be borne or paid or which may become payable for the Premises.

14. **Condemnation.**

(a) **Rent Reduction or Lease Termination.** If the Premises or any portion thereof is taken under the power of eminent domain, or sold under the threat of the exercise of said power (all of which are herein called “condemnation”), this Lease shall terminate as of the date the condemning authority takes title or possession, whichever first occurs (the “**Condemnation Date**”) and the Rent shall be reduced (as of the Condemnation Date) as provided below. If (i) more than ten percent (10.00%) of the floor area of any building(s) comprising the Improvements or more than twenty-five percent (25.00%) of the land area of the Property which is not occupied by any such building(s) is taken by condemnation, and (ii) as a result of such taking by condemnation the balance of the Premises remaining after such condemnation is not reasonably suitable for the use to which the Premises were being put immediately prior to the condemnation, Landlord or Tenant may, at either’s option, to be exercised in writing only within ten (10) calendar days after Landlord shall have given Tenant written notice of such taking (or in the absence of such notice, within ten (10) calendar days of the Condemnation Date) terminate this Lease as of the Condemnation Date. If neither Landlord nor Tenant terminates this Lease in accordance with the foregoing, or in the event that that portion of the Premises taken by condemnation is not sufficiently large so as to give rise to the right to terminate this Lease as above provided, this Lease shall remain in full force and effect as to the portion of the Premises remaining, except that the Base Monthly Rent shall be reduced (as of the Condemnation Date) in the proportion that the area

taken by condemnation bears to the total area of the Premises. Notwithstanding the provisions of the preceding sentence, in the event the portion of the Premises so taken consists of land only and does not exceed ten percent (10.00%) of the total land area of the Property then Tenant shall not be entitled to any reduction of Base Monthly Rent as provided in the preceding sentence.

(b) **Award.** Any award for the taking of all or any part of the Premises under the power of eminent domain or any payment made under threat of the exercise of such power shall be the Property of Landlord, whether such award shall be made as compensation for diminution in value of the leasehold or for the taking of the fee, or as severance damages; provided, however, that Tenant shall be entitled to any award specifically attributed by the condemning authority to loss or damage to Tenant's trade fixtures and removable personal property or to Tenant's relocation costs. In the event that this Lease is not terminated by reason of such condemnation, Landlord shall, to the extent of severance damages received by Landlord in connection with such condemnation and not paid to or retained by the holder of any mortgage or deed of trust on the Property or the Premises, repair any damage to the Premises caused by such condemnation except to the extent that Tenant has been reimbursed therefor by the condemning authority (in which event such reimbursement to Tenant shall also be applied to such repair). Tenant shall pay any amount in excess of such severance damages required to complete such repair; provided, however, if the severance damages are not sufficient to pay all of the repair costs and if any specific item of repair work shall be expected to have a useful life which extends beyond the Term of this Lease (including the Term of any options which Tenant may have the right to exercise), then Tenant shall be obligated to pay with respect to the identifiable cost of such item of repair only the portion of the total cost of such item of repair which bears the same ratio to the total cost of such item of repair as the remaining Term of this Lease (as determined on the Condemnation Date and including the Term of any options which the Tenant may have the right to exercise) bears to the reasonably anticipated useful life of such item of repair.

(c) **Temporary Condemnation.** If the temporary use of the whole or any part of the Premises shall be taken by condemnation, the Term shall not be reduced or affected in any way, and Tenant in such event shall continue to pay in full the Rent and other charges herein reserved, without reduction or abatement, and, except to the extent that Tenant is prevented from so doing by reason of any order of the condemning authority, shall continue to perform and observe all of the other covenants, conditions and agreements of this Lease to be performed or observed by Tenant as though such taking had not occurred. In the event of any such temporary condemnation Tenant shall, so long as it is otherwise in compliance with the provisions of this Lease, be entitled to receive for itself any and all awards or payments made for such use of that portion of the Premises so taken; provided, however, that Tenant shall repair any and all damages to the Premises (whether or not covered by any award to Tenant) caused by such temporary condemnation.

15. **Assignment and Subletting.**

(a) **Consent.** Tenant shall not voluntarily or by operation of law assign, transfer, mortgage, sublet, or otherwise transfer or encumber all or any part of Tenant's interest in this Lease or in the Premises without the Landlord's prior signed written consent, which consent the Landlord shall not unreasonably withhold. The consent of Landlord to any one (1) assignment,

transfer, mortgage, subletting, or encumbrance shall not be deemed to be a consent to any subsequent assignment, transfer, mortgage, subletting, or encumbrance.

(b) Tenant's Continuing Liability. Regardless of Landlord's consent, no subletting or assignment shall alter the primary liability of Tenant to pay the Rent or release Tenant of Tenant's obligation to perform all other obligations to be performed by Tenant hereunder unless Landlord's written consent shall so specifically provide, and Landlord under no circumstances shall be obligated to release Tenant from any such liability.

(c) Information. In connection with any proposed assignment or sublease, Tenant shall submit such materials as requested by Landlord.

(d) Acceptance of Performance. Landlord may accept Rent, additional Rent or performance of Tenant's obligations from any person other than Tenant pending approval or disapproval of an assignment. Neither a delay in the approval or disapproval of such assignment nor such acceptance of Rent or of performance shall constitute a waiver nor estoppel of Landlord's right to exercise its remedies for Tenant's default.

(e) Release. Whenever Landlord conveys its interest in the Premises, Landlord shall be automatically released from the further performance of covenants on the part of Landlord herein contained, and from any and all further liability, obligations, costs and expenses, demands, causes of action, claims or judgments arising from or growing out of, or connected with this Lease after the effective date of said release. The effective date of said release shall be the date the assignee executes an assumption of such an assignment whereby the assignee expressly agrees to assume all of Landlord's obligations, duties, responsibilities and liabilities with respect to this Lease. If requested, Tenant shall execute a form of release and such other documentation as may be required to effect the provisions of this paragraph.

(f) Additional Terms and Conditions Applicable to Subletting. The following terms and conditions shall apply to any subletting by Tenant of all or any part of the Premises and shall be deemed included in all subleases under this Lease whether or not expressly incorporated therein:

(i) Tenant hereby assigns and transfers to Landlord all of Tenant's interest in all Rent and other sums payable on any sublease, and Landlord may collect such Rent and other sums and apply same toward Tenant's obligations under this Lease; provided, however, that until a material uncured default shall occur in the performance of Tenant's obligations, Tenant may collect said Rent and other sums. Landlord shall not, by reason of the foregoing or any assignment of such sublease, nor by reason of the collection of Rent and other sums be deemed liable to the sublessee for any failure of Tenant to perform and comply with any of Tenant's obligations to such sublessee. Tenant hereby irrevocably authorizes and directs any such sublessee, upon receipt of a written notice from Landlord stating that a default exists in the performance of Tenant's obligations under this Lease, to pay to Landlord all Rent and other sums due and to become due under the sublease. Sublessee shall rely upon any such notice from Landlord and shall pay all Rents

and other sums to Landlord without any obligation or right to inquire as to whether such default exists, notwithstanding any claim from Tenant to the contrary.

(ii) In the event of a material uncured default by Tenant, Landlord may, at its option, require the sublessee to attorn to Landlord, in which event Landlord shall undertake the obligations of the sublessor under such sublease from the time of the exercise of said option to the expiration of such sublease; provided, however, Landlord shall not be liable for any prepaid Rents or security deposit paid by such sublessee to such sublessor or for any prior defaults or breaches of such sublessor.

(iii) Any matter requiring the consent of the sublessor under a sublease shall also require the consent of Landlord.

(iv) Tenant and sublessee shall not amend the sublease without the Landlord's prior express written consent.

(v) No sublessee shall further assign or sublet all or any part of the Premises without Landlord's prior written consent.

(vi) Landlord may deliver a copy of any notice of default by Tenant to the sublessee and shall have the right, but not the obligation, to accept the cure of the default of Tenant. The sublessee shall have a right of reimbursement and offset from and against Tenant for any such defaults cured by the sublessee.

(vii) Any sublease shall incorporate the provisions of this Lease such that there are no gaps between the obligations of the Tenant under this Lease obligations of the subtenant under the sublease.

(viii) Sublessee shall be responsible for fulfilling the insurance requirements under this Lease to the extent they relate to the subleased Premises and the sublessee's property and fixtures. Sublessee's insurance shall both the Landlord and the Tenant and shall contain a mutual waiver of subrogation.

(ix) The Landlord may prepare, and if so, the parties shall execute, a Consent to Sublease that may contain additional requirements.

(g) **Injunctive Relief.** Tenant's remedy for any breach of this Paragraph 15 by Landlord shall be limited to injunctive relief without the right to recover damages of any type, compensatory or otherwise, for such breach.

16. **Defaults; Remedies.**

(a) **Defaults.** The occurrence of any one (1) or more of the following events shall constitute a material default and material breach of this Lease by Tenant:

(i) The vacating or abandonment of the Premises by Tenant;

(ii) The failure by Tenant to make any payment of Rent or any other payment required to be made by Tenant hereunder, as and when due, where such failure shall continue for a period of ten (10) calendar days after written notice thereof from Landlord to Tenant;

(iii) The failure by Tenant to observe or perform any of the covenants, conditions or provisions of this Lease to be observed or performed by Tenant, other than those described in subparagraph (ii) above, where such failure shall continue for a period of fifteen (15) calendar days after the Tenant's actual receipt of signed written notice thereof from Landlord to Tenant; provided, however, that if the nature of Tenant's default is such that it is capable of being cured but more than ten (10) calendar days are reasonably required for its cure, then Tenant shall not be deemed to be in default if Tenant commences such cure within such ten (10) calendar day period and thereafter diligently prosecutes such cure to completion;

(iv) The making by Tenant of any general assignment for the benefit of creditors, the filing by or against Tenant of a petition for order of relief in bankruptcy for the purpose of bankruptcy liquidation or reorganization under any law relating to bankruptcy whether now existing or hereafter enacted (including, without limitation, any petition filed by or against Tenant under any one or more of the following Chapters of the Bankruptcy Reform Act of 1978, 11 U.S.C. §§ 101-1330 ("**Bankruptcy Code**") as amended: Chapter 7 or Chapter 9 or Chapter 11 or Chapter 12 or Chapter 13 except that, in the case of a filing against Tenant of such a petition, such filing shall not be a default if the petition is dismissed or discharged on or before sixty (60) calendar days after the filing thereof; the appointment of a trustee or receiver to take possession of all or substantially all of Tenant's assets located at the Premises or of Tenant's interest in this Lease, where possession is not restored to Tenant within sixty (60) calendar days; or the attachment, execution or other judicial seizure of substantially all of Tenant's assets located at the Premises or of Tenant's interest in this Lease, where such seizure is not discharged within sixty (60) calendar days. Unless Landlord's express written consent thereto is first obtained, in no event shall this Lease, or any interest herein or hereunder or any estate created hereby, be assigned or assignable by operation of law or by, in or under voluntary or involuntary bankruptcy liquidation or reorganization proceedings or otherwise and in no event shall this Lease or any rights or privileges hereunder be an asset of Tenant under any bankruptcy liquidation or reorganization proceedings. Any purported assignment or transfer in violation of the provisions of this subparagraph (iv) shall constitute a material default and breach of this Lease by Tenant and in connection with any such default and breach Landlord shall have the rights and remedies described in subparagraph (b) below, including, without limitation, the election to terminate this Lease. As used in this subparagraph (iv) the words "bankruptcy liquidation" or "reorganization proceedings" shall include any proceedings under any law relating to bankruptcy whether now existing or hereafter enacted (including, without limitation, proceedings under any one or more of the Bankruptcy Code as amended: Chapter 7 or Chapter 9 or Chapter 11 or Chapter 12 or Chapter 13).

(v) The final rejection of this Lease in any proceeding under the Bankruptcy Code.

(b) Remedies.

(i) **Landlord's remedies on default.** In the event of any material default or breach by Tenant, the Landlord shall give the Tenant signed written notice of the specific default or breach. If the Tenant fails to cure the breach so noticed within thirty (30) calendar days after the date of the Tenant's actual receipt of the notice, then the Landlord may, in its sole discretion and without limiting the Landlord in the exercise of any right or remedy which Lessor may have by reason of such default or breach:

1. Terminate Tenant's right to possession of the Premises by any lawful means, in which case this Lease shall terminate and Tenant shall immediately surrender possession of the Premises to Landlord, subject to the reasonable right of the Tenant thereafter to access the Premises to reasonably remove its brewing fixtures as described in the attached Exhibit "B". In such event, the Landlord shall be entitled to recover from the Tenant all damages actually incurred by the Landlord by reason of Tenant's default, including, but not limited to, the cost of recovering possession of the Premises, expenses of reletting and reasonable attorneys' fees. In the event the Tenant shall have abandoned the Premises, the Landlord shall have the option of: (a) retaking possession of the premises and recovering from the Lessee the amount specified in this paragraph; or, (b) proceeding under subparagraph; (2) below.

2. Maintain Tenant's right to possession, in which case this Lease shall continue in effect whether or not Tenant shall have abandoned the Premises. In such event, the Landlord shall be entitled to enforce all of Landlord's rights and remedies under this Lease, including the right to recover the Rent as it becomes due hereunder.

3. Pursue any other remedy now or hereafter available to Lessor under the laws or judicial decisions of the State of Wyoming.

(i) **Tenant's remedies on default.** In the event of any material breach or default by the Landlord, the Tenant shall give the Landlord signed written notice of the specific default or breach. If the Landlord fails to cure the breach so noticed within thirty (30) calendar days after the date of the Landlord's actual receipt of the notice, (provided, however, that if the nature of Landlord's default is such that more than thirty (30) calendar days are reasonably required for its cure, then Landlord shall not be deemed to be in default if Landlord commenced such cure within said thirty (30) day period and thereafter diligently prosecutes such cure to completion), then the Tenant shall have the right to perform such obligation of Landlord and

deduct or offset the cost of same from the Rent due under this Lease, or the Tenant shall have the right to terminate this Lease.

(c) **Late Charges.** Tenant hereby acknowledges that late payment by Tenant to Landlord of Rent and other sums due hereunder will cause Landlord to incur costs not contemplated by this Lease, the exact amount of which will be extremely difficult to ascertain. Such costs include, but are not limited to, processing and accounting charges, and late charges which may be imposed on Landlord by the terms of any mortgage or trust deed covering the Premises. Accordingly, if any installment of Rent or any other sum due from Tenant shall not be received by Landlord or Landlord's designee within fifteen (15) calendar days after such amount shall be due, Tenant shall pay to Landlord a late charge equal to seven percent (7.00%) of such overdue amount. The parties agree that such late charge represents a fair and reasonable estimate of the costs Landlord will incur by reason of late payment by Tenant. Landlord waives any claim to claim or seek to collect any other pre-judgment interest from Tenant on any amounts due and owed by Tenant to Landlord. Acceptance of such late charge by Landlord shall in no event constitute a waiver of Tenant's default with respect to such overdue amount, nor prevent Landlord from exercising any of the other rights and remedies.

(d) **Payment or Performance by Landlord.** Landlord may, only in the event of an uncured material default or breach of the lease by Tenant, and solely in the Landlord's discretion, pay any sum or do any act which Tenant has failed to pay or do at the time Tenant was obligated to make such payment or perform such act and Landlord shall be entitled to recover from Tenant, upon demand, all sums expended by Landlord in making such payment or performing such act. Such sum, if incurred and due, and interest shall be deemed additional Rent under this Lease.

17. **Miscellaneous.**

(a) **Estoppel Certificate.**

(i) Tenant shall at any time upon not less than ten (10) calendar days prior written notice from Landlord execute, acknowledge, and deliver to Landlord a statement in writing certifying that this Lease is unmodified and in full force and effect (or, if modified, stating the nature of such modification and certifying that this Lease, as so modified, is in full force and effect) and the date to which the Rent and other charges are paid in advance, if any, and acknowledging that there are not, to Tenant's knowledge, any uncured defaults on the part of Landlord hereunder, or specifying such defaults if any are claimed. Any such statement may be conclusively relied upon by any person to whom it shall be delivered by Landlord including any prospective purchaser or encumbrancer of the Premises, the Improvements, the Property, or any part thereof.

(ii) Tenant's failure to deliver such statement within such time shall be conclusive upon Tenant that this Lease is in full force and effect, without modification except as may be represented by Landlord; that there are no uncured defaults in Landlord's performance; and that not more than one (1) calendar month's Rent has been paid in advance.

(iii) If Landlord desires to sell, , the Property, or any part thereof, or at any other time Landlord may request (so long as such other request is not made more than once in any calendar year), Tenant hereby agrees to deliver to Landlord or any prospective buyer or lender designated by Landlord such financial statements of Tenant as may be reasonably required by Landlord or such prospective buyer or lender. Such statements shall include the past three (3) years financial statements of Tenant. All such financial statements shall be received by Landlord, the prospective buyer and/or the prospective lender, as applicable, in confidence and shall be used only for purposes related to the Premises or this Lease.

(b) **Landlord's Liability.** The term "**Landlord**" as used herein shall mean only the owner or owners at the time in question of the fee title (or the lessee's interest in any ground or master lease) to the Premises and in the event of any transfer of such title, Landlord herein named (and in case of any subsequent transfers, the then grantor) shall be relieved from and after the date of such transfer of all liability as respects Landlord's obligations thereafter to be performed, provided that any funds in the hands of Landlord or the then grantor at the time of such transfer in which Tenant has an interest shall be delivered to the grantee. The obligations contained in this Lease to be performed by Landlord shall, subject as aforesaid, be binding on Landlord's successors and assigns only during their respective periods of ownership.

(c) **Construction.** Paragraph captions are solely for the convenience of the parties and shall not be deemed to or be used to define, construe, or limit the terms hereof. As used in this Lease, the masculine and neuter genders shall be deemed to include the others, and the singular number shall be deemed to include the plural, whenever the context so requires. The invalidity of any provisions of this Lease as determined by a court of competent jurisdiction shall in no way affect the validity of any other provision hereof. This Lease shall be governed by the laws of the state in which the Premises are located.

(d) **Time of Essence.** Time is of the essence of this Lease and all of the covenants and obligations hereof.

(e) **Counterparts.** This Lease may be executed in two (2) or more counterparts, each of which shall be deemed an original but all of which together shall constitute one and the same Lease.

(f) **Entire Agreement; Amendments.** This Lease (including all of its referenced Exhibits) sets forth the entire written signed integrated Agreement of the parties with respect to its subject matter. This Lease supersedes any and all prior agreements, understandings, statements or representations between the parties. This Lease may be modified in a writing signed by all parties.

(g) **Notices.** Any notices, approvals, agreements, certificates, other documents or communications between the parties hereto required or permitted under this Lease shall be in writing. Any such communications shall be deemed to have been duly given or served if delivered in hand or forty-eight (48) hours after deposit in the United States mail, certified or registered, postage and fees prepaid, return receipt requested, addressed to the parties at the addresses set forth

in Paragraph 1 of this Lease. The address to which any such communications shall be sent may be changed by either party hereto from time to time by a notice mailed as aforesaid.

(h) **Waivers.** No waiver by either party of any provision hereof shall be deemed any waiver of any other provision hereof or of any subsequent breach by the other party of the same or any other provision. One party's consent to or approval of any act shall not be deemed to render unnecessary the obtaining of that party's consent to or approval of any subsequent act by the other party. The acceptance of Rent hereunder by Landlord shall not be a waiver of any preceding breach by Tenant of any provision hereof, other than the failure of Tenant to pay the particular Rent so accepted, regardless of Landlord's knowledge of such preceding breach at the time of acceptance of such Rent.

(i) **Recording.** Tenant shall not record this Lease without Landlord's prior written consent. Landlord and Tenant shall, upon the request of either party, execute, acknowledge and deliver to the other for recording a "short form" memorandum of this Lease for recording purposes.

(j) **Holding Over.** If Tenant remains in possession of the Premises or any part thereof after the expiration of the Term or sooner termination of this Lease without executing a new lease, such occupancy shall be construed as a tenancy from month-to-month at the existing Base Rental Rate for two (2) calendar months and then as a tenancy at sufferance thereafter. Nothing contained in this subparagraph shall be construed to grant Tenant the right to hold over without the express written consent of Landlord.

(k) **Covenants and Conditions.** Each provision of this Lease performable by Tenant shall be deemed both a covenant and a condition.

(l) **Binding Effect.** Subject to any provisions hereof restricting assignment or subletting by Tenant and subject to the provision of subparagraph (b) above, this Lease shall bind the parties and their personal representatives, successors and assigns.

(m) **Attorneys' Fees and Other Costs.** If either party brings an action to enforce the terms hereof or declare rights under this Lease, the prevailing party in the final adjudication of any such action, on trial or appeal, shall be entitled to its costs and expenses of suit, including, without limitation, its actual attorneys' fees, to be paid by the losing party as fixed by the court.

(n) **Landlord's Access.** Landlord and Landlord's agents shall, with reasonable advanced signed written notice, have the right to enter the Premises at reasonable times for the purpose of inspecting the same, showing the same to prospective purchasers, lenders or lessees and making such alterations, repairs, improvements or additions to the Premises or the Improvements only pursuant to this Lease. Landlord may at any time place on or about the Premises any ordinary "For Sale" signs and Landlord may at any time during the last sixty (60) calendar days of the Term place on or about the Premises any ordinary "For Lease" signs, all without rebate of Rent or liability to Tenant.

(o) **Auctions.** Tenant shall not conduct any auction on the Premises without Landlord's prior written consent.

(p) **Merger.** The voluntary or other surrender of this Lease by Tenant, or a mutual cancellation thereof, shall not work a merger, and shall, at the option of Landlord, terminate all or any existing subtenancies or may, at the option of Landlord, operate as an assignment to Landlord of any or all of such subtenancies. During any period while Tenant is in material default under this Lease, Landlord, in addition to any other rights and remedies it may have under this Lease, shall have the right to collect directly from any subtenant all rentals owing to Tenant under any subtenancy and to apply such rentals to any amounts owing to Landlord by Tenant and the payment of such amounts by the subtenant directly to Landlord shall not be a material default under the subtenancy.

(q) **Individual Liability.** The obligations of Landlord or of the Tenant under this Lease do not constitute personal obligations of the individual partners, directors, officers, or shareholders of Landlord or the Tenant.

(r) **Lenders Right to Cure.** Tenant agrees to give the holder of any mortgage or trust deed encumbering the Premises, by registered mail, a copy of any notice of default or nonperformance served upon Landlord, provided that prior to such notice, Tenant has been notified in writing (by way of Assignment of Rents and Leases or otherwise) of the address of such mortgagee or trust deed holder. Tenant further agrees that Landlord shall not be in default under this Lease unless (i) Tenant has given a written notice to Landlord stating that Landlord has failed to perform Landlord's obligations under this Lease and (ii) specifying with particularity the obligations which Landlord has failed to perform, and Landlord thereafter fails to perform any of its obligations so specified within a reasonable time after Landlord's receipt of such notice. If Landlord shall fail to cure such nonperformance in a timely manner, then such mortgagee or trust deed holder shall have an additional thirty (30) days within which to cure the default, or, if such default cannot be cured within that time, then such additional time as may be necessary if within such thirty (30) calendar days such mortgagee or trust deed holder has commenced and is diligently pursuing the remedies necessary to cure such default (including but not limited to commencement of foreclosure proceedings, if necessary to effect such cure), in which event this Lease shall not be terminated by Tenant while such remedies are being so diligently pursued.

(s) **Landlord's Sale of Property.** In the event Landlord desires to list the Property for sale with a realtor, Landlord shall first give written notice of such intent to Tenant and Tenant shall have an exclusive period of ninety (90) calendar days within which to negotiate a real estate purchase and sale agreement with Landlord. In the event the parties fail to timely enter into such real estate purchase and sale agreement, Landlord shall be free to sell the Property to a third party, subject to the terms of this Lease Agreement.

18. **Hazardous Materials.** Neither Tenant, nor any of Tenant's agents, contractors, employees, licensees, invitees, successors or assigns shall at any time handle, use, manufacture, store or dispose of in or about the Premises any flammables, explosives, radioactive materials, hazardous wastes or materials, toxic wastes or materials, or other similar substances, petroleum products or derivatives or substances (collectively "Hazardous Materials") subject to regulation by or under any federal, state and local laws and ordinances relating to the protection of the environment or the keeping, use or disposition of environmentally hazardous materials, substances, or wastes, presently in effect or hereafter adopted, all amendments to any of them, and all rules and regulations issued pursuant to any of such laws or ordinances (collectively

"Environmental Laws"). However, the list of substances and classes of substances set out in the attached and incorporated in this Lease as Exhibit "C" shall at all times be expressly and fully exempt from the general definition of "Hazardous Materials" set out in this paragraph and shall therefore be expressly exempt from the prohibitions and restrictions in this paragraph because they are substances or categories of substances that are necessary or useful in the Tenant's manufacturing and production processes and, that the Tenant uses appropriately subject to applicable law. Tenant shall protect, defend, indemnify and hold Landlord harmless from and against any and all loss, claims, liability or costs (including court costs and attorney's fees) incurred by reason of any actual or asserted failure of Tenant to fully comply with all applicable Environmental Laws, or the presence, handling, use or disposition in or from the Premises of any Hazardous Materials, or by reason of any actual or asserted failure of Tenant to keep, observe, or perform any provision of this paragraph. Notwithstanding the foregoing, and subject to Landlord's prior consent, Tenant may handle, store, use or dispose of products containing small quantities of Hazardous Materials (such as aerosol cans containing insecticides, toner for copiers, paints, paint remover and the like) to the extent customary and necessary for the use of the Premises for general office purposes; provided that Tenant shall always handle, store, use, and dispose of any such Hazardous Materials in a safe and lawful manner and never allow such Hazardous Materials to contaminate the Premises or the environment.

(a) **Release of Landlord.** Tenant fully and completely releases Landlord from, and waives and covenants not to assert against Landlord, any claims, liabilities, obligations, actions, defenses, challenges, contests or other opposition, however characterized, known or unknown, foreseen or unforeseen, now existing or arising in the future, relating to any Hazardous Substances (or activity related thereto) located on, under or about the Premises, except to the extent arising primarily from the negligence or willful misconduct of Landlord, as determined by a court of competent jurisdiction in a final non-appealable judgment or order; provided, however, that in no event will Landlord be liable for, and Tenant expressly waives any right to, any of the following: lost profits, loss or interruption of business, denial of use of real property, consequential or indirect damages, or diminution in value, including any special, consequential, indirect, or punitive damages.

IN WITNESS WHEREOF, the undersigned have executed this Lease as of the date and year first above written.

[Signature page follows.]

LANDLORD:

NINETEENTH and O'NEIL, LLC
a Wyoming limited liability company

By: 

Printed Name: Kent Sherwood

Its: member

TENANT:

Black Tooth Brewery Company, LLC
a Wyoming limited liability company

By: 

Printed Name: TIMOTHY P. BARNES

Its: Manager

EXHIBIT A

PREMISES ADDRESS AND LEGAL DESCRIPTION

520 West 19th St.
Cheyenne, Wyoming 82001

The land referred to herein below is situated in the County of Laramie, State of Wyoming, and is described as follows:

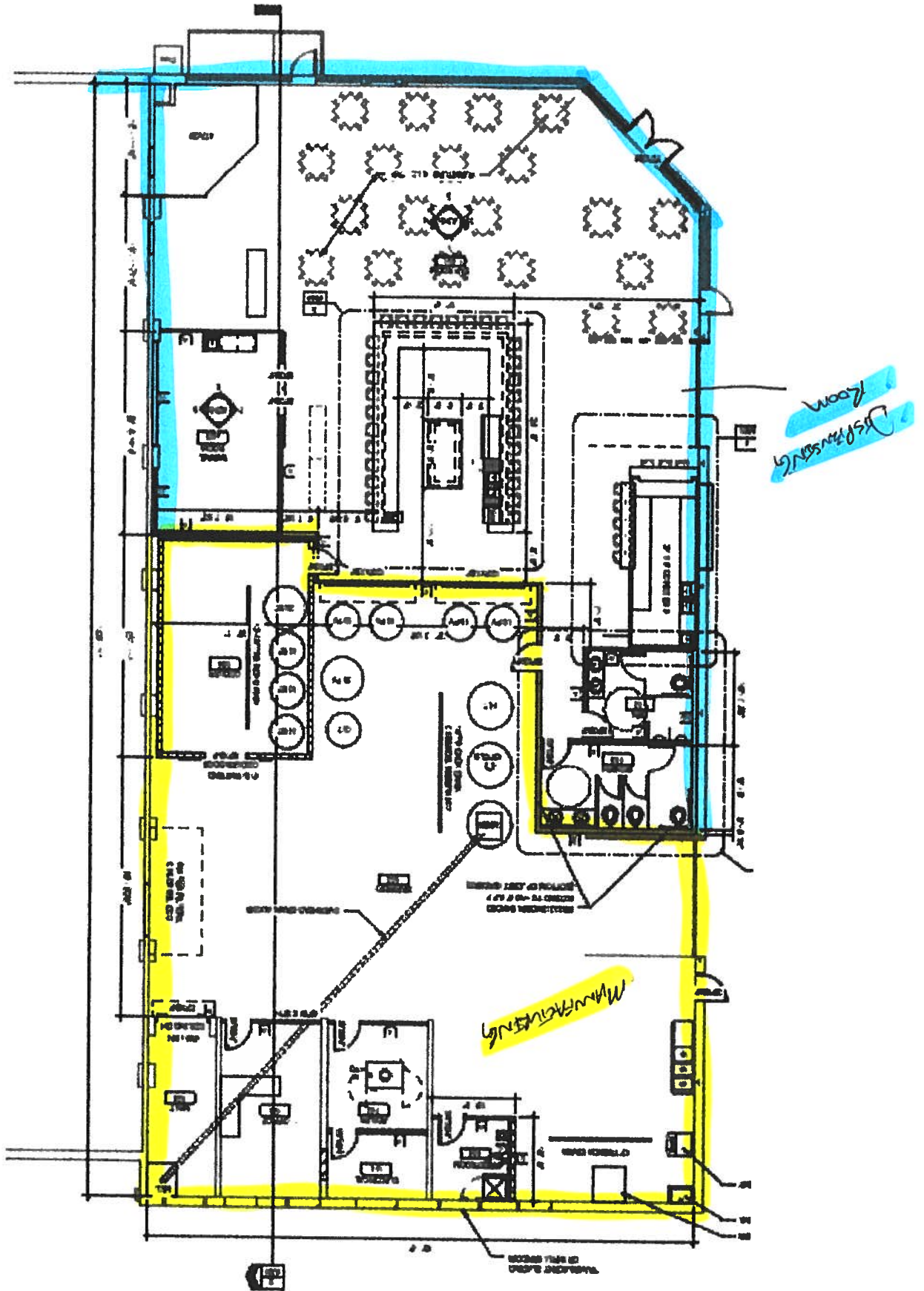
- Parcel I: All of Lot 5, Block 290, City of Cheyenne, Laramie County, Wyoming, as amended by the Affidavit of Lot Line Adjustment recorded on April 17, 2019 in Book 2618, Page 832, Records of Laramie County.
- Parcel II: Lot1, E½ Lot 2 and the East 7 feet of W½ Lot 2, Block 332, City of Cheyenne, Larimer County, Wyoming.

EXHIBIT B

TENANT'S BREWING AND RELATED FIXTURES

EXHIBIT C

**SUBSTANCES OR CLASSES OF SUBSTANCES THAT ARE EXEMPT FROM THE
GENERAL DEFINITION OF "HAZARDOUS SUBSTANCES" FOR PURPOSES OF
THIS LEASE**





Drink THE West

2020 City of Cheyenne Microbrewery Permit Application Attached Documentation:

January 15th, 2020

To Mayor Orr and Members of The City Council of Cheyenne:

- 1) The Black Tooth Brewing Company, LLC wishes to add a second licensed Brewing Facility and Taproom in the leased building owned by Nineteenth and O'Neil, LLC located at 520 W. 19th Street in Cheyenne. (Lease Agreement Attached)
- 2) The Black Tooth Brewing Company of Sheridan operates under the Federal TTB Permit (#BR-WY-BLA-15000) and has operated continuously since 2010. The ownership of The Black Tooth Brewing Company has remained unchanged since 2014. (Ownership Document Attached)
- 3) The Black Tooth Brewing Company has applied for and received a second location Federal TTB Permit (#BR-WY-21040) for the location at 520 W. 19th in Cheyenne.
- 4) All funding required for both locations, and all previous or outstanding loans are guaranteed by the individuals listed on the attached Owner Info document and referenced in the attached Financial Condition Letter from our Lender.
- 5) It is our intent upon approval to retain all of our existing Wholesaler relationships and territorial assignments as currently filed and apply with the State of Wyoming to allow for all product also produced at the Cheyenne location to fall under the same agreements and assignments as required.

Thank You For Consideration,

Sincerely,

Tim Barnes
Co-Founder

BTBREW.COM

312 Broadway St.
Sheridan, WY 82801
307.675.2337

Industry Member Information

Report Date: 1/20/2020 12:56:14PM

Original Application 08/20/2019
Submitted Date

Original Application Tracking Number 2019-BRE-01096-O
Application Type Application for Brewery or Brewpub
Application Status **Approved**
EIN 27-1336193
Company Name BLACK TOOTH BREWING COMPANY, LLC
Premises Address 520 W 19TH STREET
CHEYENNE, USA WY 82001
Premise Contact Name
Premise Phone Number

Application Contact

Full Name Tim Barnes
Business Name Blacktooth Brewing Company
Address/City/State/Zip 312 Broadway
Sheridan WY 82801
Phone/Fax 307--67-5-23/--
Email tim@btbrew.com

Mailing Address

Full Name Timothy Patrick Barnes
Business Name Black Tooth Brewing Company, LLC
Address/City/State/Zip 520 W. 19th Street
Cheyenne WY 82001
Phone/Fax 307-751-3124/--
Email tim@btbrew.com

BREWERY INFORMATION

Are you a member of a controlled group of breweries? No

What is your estimated production in barrels per year? Less than 60,000

I certify that I AM NOT required to provide a bond CHECKED

Describe the entire tract of land by using directions
and distances

North East Corner of 19th and O'Neil Streets in Cheyenne,
WY 82001
Tract of Land is 126 feet along O'Neil Street from intersectio
going North and 65ft along 19th Street going East.

Describe each brewery premises building: provide size (using distances and directions), construction, use of building, and location of doors and windows

The Brewery Consists of 1 Building

The Building is Brick

65'x130' This building will be used for storing beer and beer production

Identify which areas of the brewery will be used as a tavern/pub including the boundaries

40'x20' area is being used as a tavern

Identify which areas are accessible to the public and areas which are not

Public access will only be allowed in the brewpub/tavern area. The public will not have access to the brewing area which is the 80x65' north portion of the building

Describe the security measures that will prevent access to non-public areas (brewing area)

The brewpub will be secured from the brewing area by solid walls and a locked door.

Describe in detail the method to be used for measuring beer for the purpose of tax determination.

Beer will be measured in brite tanks for tax determination (3' 10bbl and (1) 20bbl Brite Tanks

Identify the tanks which will periodically contain tax-determined beer, and any other areas where tax-determined beer will be stored

Will you be Alternating

No

Describe brewery security to include: locks, access to the brewery and how un-taxpaid goods will be protected during and after business hours

Security cameras will be installed and locks on all doors accessible only by brewery paid staff.

Will you have a tasting room?

No

Do you plan to charge for samples, tours, and/or parking?

No

Do you understand that the tasting room must be physically separated from the brewing area(s)? This usually consists of walls with a locked door or a fence with a locking gate

No

Do you understand brewery charges?

No

Do you understand you cannot run lines from the brewery to the tasting room (beer should be tax paid and removed to the tasting room in kegs or some other type of TTB approved container)?

No

BREWERY OPERATION INFO

Brewpub

CHECKED

Do you own the brewery premises?

No

If no, please provide the name and address of the owner of the land or buildings which house the brewery, and any mortgagee, or any other person with claim on the land or buildings

Nineteenth and O'Neil, LLC
312 Broadway
Sheridan, WY 82801

Do you own the equipment that will be used in the brewery?

Yes

Enter the start time of your 24 hour business day if different than 12:00 AM through 11:59 PM

12:00 AM

BREW PUB STATEMENT

We must separate the brewery operations (non-public area) from public area of the brewery premises by an adequate partition. Access to the brewery operations must be restricted to authorized visitors and employees only

CHECKED

The serving tanks as noted on our attached diagram are our tax-determined beer tanks	CHECKED
What is the approximate working capacity of the serving tanks (measured in barrels or kegs)?	10
The capacity of the serving tanks is measured in	Barrels
These tanks are accurately calibrated with appropriate measuring devices	CHECKED
We must transfer beer ready for consumption or sale from our fermenters into an empty tax-determination tank for measurement by the approved measuring device	CHECKED
We will make prompt and accurate records of these transactions to determine tax due	CHECKED
Do you plan to conduct retail sales of alcohol other than beer?	No

DBA/OPERATING NAME

Doing Business As / Operating Name	Black Tooth Brewing Company
By checking this box I certify that the Doing Business As / Operating Name listed above has been registered with my county or state, if applicable	CHECKED

DECLARE AND ACKNOWLEDGE

I declare under penalties of perjury under the laws of the United States of America, that I have examined this application, including accompanying statements, and to the best of my knowledge and belief, it is true, correct, and complete.	CHECKED
Declaration Date	08/20/2019

ENTITY INFORMATION

Business Name	BLACK TOOTH BREWING COMPANY, LLC
EIN	27-1336193
Triage Status	No

REASON FOR THE APPLICATION

New brewery / brewpub	CHECKED
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REGISTRATION INFORMATION

Registry Number	BR-WY-21040
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WATER QUALITY INFORMATION

List any liquid waste that may be released into navigable waters such as rivers, canals, or lakes	Not Applicable
Provide beginning and ending dates for release	Not Applicable
Describe how you will monitor the quality and characteristics of the discharge	Not Applicable

REQUIRED DOCUMENT CHECKLIST

Document Type	Diagram
Method of Submission	Uploaded
Document Received	UNCHECKED
Document Type	Source of Funds Documentation
Method of Submission	On File and Previously Approved by TTB
Permit, registry, notice, or application tracking number	BR-WY-BLA-15000
Document Received	UNCHECKED
Document Type	Lease Agreement or Proof of Property Ownership
Method of Submission	Uploaded
Document Received	UNCHECKED

STATE OF WYOMING * SECRETARY OF STATE
EDWARD A. BUCHANAN
BUSINESS DIVISION

Herschler Bldg East, Ste.100 & 101, Cheyenne, WY 82002-0020

Phone 307-777-7311

Website: <http://soswy.state.wy.us> · Email: business@wyo.gov

Filing Information



Please note that this form CANNOT be submitted in place of your Annual Report.

Name	BLACK TOOTH BREWING COMPANY, LLC		
Filing ID	2009-000576650		
Type	Limited Liability Company	Status	Active

General Information

Old Name		Sub Status	Current
Fictitious Name		Standing - Tax	Good
		Standing - RA	Good
		Standing - Other	Good
Sub Type	Close Limited Liability Company		
Formed in	Wyoming	Filing Date	11/12/2009 12:54 PM
Term of Duration	None	Delayed Effective Date	
		Inactive Date	

Principal Address

312 Broadway
Sheridan, WY 82801

Mailing Address

312 Broadway
Sheridan, WY 82801

Registered Agent Address

Tim P Barnes
312 Broadway St
Sheridan, WY 82801

Parties

Type	Name / Organization / Address
Member/Manager	Tim P Barnes
Organizer	Tim P Barnes

Notes

Date	Recorded By	Note
7/1/2010 9:13 AM	RGONZA	Duration 30 years

Filing Information



Please note that this form CANNOT be submitted in place of your Annual Report.

Name	BLACK TOOTH BREWING COMPANY, LLC		
Filing ID	2009-000576650		
Type	Limited Liability Company	Status	Active

Most Recent Annual Report Information

Type	Original	AR Year	2019
License Tax	\$137.19	AR Exempt	N
AR Date	8/27/2019 2:35 PM		
Web Filed	Y		

Officers / Directors

Type	Name / Organization / Address
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Principal Address

312 Broadway
Sheridan, WY 82801

Mailing Address

312 Broadway
Sheridan, WY 82801

Annual Report History

Num	Status	Date	Year	Tax
01251879	Original	12/09/2010	2010	\$50.00
Principal Address 1 Changed From: 1661 Hillcrest Dr To: 312 Broadway				
01421400	Original	10/28/2011	2011	\$50.00
01604329	Original	10/04/2012	2012	\$50.00
01904164	Original	10/07/2013	2013	\$50.00
02108881	Original	10/23/2014	2014	\$50.00
02329549	Original	10/28/2015	2015	\$233.32
02599412	Original	10/19/2016	2016	\$150.58
03015161	Original	09/27/2017	2017	\$191.26
03850141	Original	10/04/2018	2018	\$188.32
04951499	Original	08/27/2019	2019	\$137.19

Amendment History

ID	Description	Date
2014-001673755	Restated Articles	11/24/2014
2014-001673748	RA Name/Address Change	11/24/2014
2010-000904802	Delinquency Notice - Tax	11/02/2010
See Filing ID	Initial Filing	11/12/2009